

Motor Vehicles Third Party Insurance Rules, 1946

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Union of India - Act

Motor Vehicles Third Party Insurance Rules, 1946

UNION OF INDIA

India

Motor Vehicles Third Party Insurance Rules, 1946

Rule MOTOR-VEHICLES-THIRD-PARTY-INSURANCE-RULES-1946 of 1946

Published on 1 July 1946

Commenced on 1 July 1946

[This is the version of this document from 1 July 1946.]

[Note: The original publication document is not available and this content could not be verified.]

Motor Vehicles Third Party Insurance Rules, 1946

222.

Part I ? 1. Short title

.These rules may be called The Motor Vehicles Third Party Insurance Rules , 1946.

1.

-A. Extent.

These rules extend to the whole of India .

2.

Commencement

.These rules shall come into force on 1st July, 1946 .

3.

Definitions

.In these rules,

- (i)
accounting year means the year commencing from the first April, and ending with the 31st March of the following year;
- (i -a) Act means the Motor Vehicles Act, 1939 (4 of 1939);
- (i -b) authority means the Central Government or a State Government or any local authority or any State Transport Undertaking, whose motor vehicles have been exempted from compulsory insurance under sub-section (3) of section 94 of the Act;
- (i -c) bank means a company which accepts, for the purpose of lending or investment, deposits of money from the public repayable on demand or otherwise, and withdrawal by cheque ,draft, order or otherwise;
- (i -d) fund means the fund established under rule 15-A;
- (i -e) Government security means a Government security as defined in the Public Debt Act, 1944 (18 of 1944);
- (ii)
insurer means an authorised insurer as defined in section 93(a) of the Act;
- (iii)
policy means a policy of insurance in respect of third party risks, arising, out of the use, of motor vehicles, such as complies, with the requirements of Chapter VIII of the Act, and includes unless the context requires otherwise, a cover-note.

4.

Certificates of insurance

.An insurer shall issue to every holder of a policy other than a cover-note issued by the insurer

- (a)
in the case of a policy relating to a specified vehicle or to specified vehicles a certificate of insurance in Form A set out in the Schedule to these rules in respect of each such vehicle;
- (b)
in the case of a policy not relating to any specified vehicle or vehicles such number of certificates in Form A set out in the Schedule to these rules as may be necessary to enable compliance with the requirements of section 106 of the Act and of these rules as to the production of evidence that a motor vehicle is not being driven in contravention of section 94 of the Act.

5.

Cover-notes

- (1)
Every policy in the form of a cover-note issued by an insurer shall be in Form B set out in the Schedule to these rules.
- (2)
A cover-note referred to in sub-rule (1) shall be valid for a period of fifteen days from the date of its issue. If, for any reasons, the insurer is not able to issue a policy during that period, the validity of the cover-note shall be extended for a further period of fifteen days at a time but in no case the total period of validity of a cover note shall exceed two months.

6.

Issue of certificates and cover-notes

- (1)
Every certificate of insurance or cover-note issued by an insurer in compliance with these rules shall be duly authenticated by or on behalf of the insurer by whom it is issued.
 - (2)
The certificate of insurance aforesaid shall be issued
 - (a)
in the case of policies which are in force on 1st July, 1946 , on or before that date;
 - (b)
in any other case on or before the date on which the policy is issued or renewed.
- This sub-rule shall not apply to certificates of insurance issued in pursuance of the provisions of rule 8 of these rules.

6.

-A. Application for transfer of certificate of insurance and policy

.A person who proposes to transfer to another person the ownership of a motor vehicle together with the policy of insurance relating thereto, may apply to the insurer who has issued the certificate of insurance in respect of such vehicle in Form AA set out in the Schedule to these rules for the transfer of such certificate and the policy described therein in favour of the person to whom the motor vehicle is proposed to be transferred.

7.

Exclusion of advertising matter

.No certificate of insurance or cover-note issued in pursuance of Chapter VIII of the Act and of these rules shall contain any advertising matter either on the face or on the back thereof:

Provided that the name and address of the insurer by whom a certificate is issued, or a reproduction of the seal of the insurer, or any monogram or similar device of the insurer of the name and address of an insurance agent or broker shall not be deemed to be advertising matter for the purposes of this rule if it is printed or stamped at the foot or on the back of such certificate or cover-note.

8.

Certificates or cover-notes lost, destroyed or mutilated

(1)

Where the holder of a policy

(a)

lodges with an insurer a declaration in which he declares that a certificate of insurance or cover-note issued to him by such insurer has been lost or destroyed and sets out full particulars of the circumstances connected with the loss or destruction of the certificate or cover-note and the efforts made to find it;

(b)

or returns to the insurer the certificate of insurance or cover-note issued to him by such insurer in a defaced or mutilated condition; and

(c)

pays to the insurer a fee of Rs . 3 in respect of each such certificate or cover-note, the insurer shall, if reasonably satisfied that such certificate or cover-note has been lost and that all reasonable efforts have been made to find it, or that it has been destroyed or is defaced or mutilated, as the case may be, issue in lieu thereof another certificate of insurance or cover-note which shall be plainly endorsed to the effect that it is a duplicate certificate or cover-note, as the case may be, issued in place of the original.

(2)

When a fresh certificate or cover-note has been issued in accordance with the provisions of sub-rule (1) on representation that a certificate or cover-note has been lost, and the original certificate or cover-note is afterwards found by the holder, it shall be delivered to the insurer.

9.

Surrender of certificate or cover-note

.Every certificate of insurance or cover-note surrendered to the insured insurer in pursuance of the provisions of section 104(1) of the Act shall be defaced or destroyed by the insurer forthwith after making a record of such defacement or destruction in the records maintained in pursuance of rule 11 of these rules.

10.

Cancellation or suspension of certificate or cover-note

.When a policy of insurance or cover-note is cancelled or suspended by an insurer, the insurer shall forthwith inform the policy holder of such cancellation or suspension, by post to the latest address of the policy holder recorded in the records of the insurer.

11.

Records to be maintained by insurers

.Every insurer shall keep a record of the following particulars in respect of every policy issued by him which is in force and of every other policy issued by him during the preceding five years.

(i)

Full name and address of the person to whom the policy is issued.

(ii)

In the case of a policy relating to a specified motor vehicle or vehicles the registration mark and the number of each such vehicle and in other cases description of the vehicles covered.

(iii)

The date on which the policy comes, or came into force and the date on which it expires or expired.

(iv)

The conditions subject to which the person or classes of persons specified in the policy will be indemnified.

(v)

The number and date of issue of every certificate of insurance or cover-note issued in connection with the policy.

(vi)

The date, if any, on which any certificate of insurance or cover-note issued in connection with the policy was surrendered or cancelled.

(vii)

The date, if any, on which, the reasons for which, the policy was terminated or suspended by any means before its expiry by efflux of time.

12.

Exemption under sub-sections (2) and (3) of section 94 of the Act

(1)

In the case of a motor vehicle owned by any of the authorities specified in sub-section(2), or exempted under sub-section (3) of section 94 of the Act, a certificate in Form C set out in the Schedule to these rules signed by a person authorized in that behalf by such authority may be produced in evidence that the motor vehicle is not being driven in contravention of section 94 of the Act.

(2)

Any certificate issued in accordance with sub-rule (1) of this rule shall be destroyed by the person by whom it was issued before the motor vehicle to which it relates is sold or otherwise disposed of.

13.

Records of exempted vehicles

.Every authority referred to in sub-section (2), or exempted under sub-section (3) of section 94 of the Act shall keep a record of the motor vehicles owned by it in respect of which a policy has not been obtained, and of any certificates issued by it under these provisions in respect of such vehicles, and of the names and addresses of the persons to whom such certificates have been issued by it and of the withdrawal or destruction of any such certificates.

14.

Supply of information

.Any person, authority or insurer required by these rules to keep records of documents shall furnish without charge to the Central Government or a Provincial Government or to any police officer authorized in this behalf by the Provincial Government on request, any particulars thereof.

15.

Fee for production of information

.The fee to be paid in return for the production of information by a registering authority or the officer in charge of a police station under section 109 of the Act shall be Re. 1.

Part IA ? Establishment Of Fund By Authorities Exempted Under Sub-Section (3) Of Section 94

15.

-A. Establishment of the fund

.The authority may at any time establish a fund for meeting any liability arising out of the use of any motor vehicle of that authority which that authority or any person in its employment may incur to third parties including liability arising under the Workman's Compensation Act, 1923.

15.

-B. Amount of the fund

(1)

The fund shall be established with an initial amount of not less than rupees five lakhs and the said amount shall be kept in deposit with the bank or the Government.

(2)

Subject to the provisions of sub-rule (3) the authority shall pay into the fund at the beginning of each accounting year in respect of its vehicles in a running condition, a sum of not less than Rs . 200per vehicle.

Explanation .In this sub-rule, vehicle in running condition means all the vehicles of The authority which are expected to be in operation at any time during the accounting year.

(3)

When the fund exceeds rupees twenty lakhs or rupees two thousand five hundred per vehicle for the entire fleet of vehicles, whichever is less, the annual payment referred to in sub-rule (2)shall cease provided that if thereafter the amount at the credit of the fund falls below rupees twenty lakhs or rupees two thousand five hundred per vehicle for the entire fleet of vehicles, whichever is less, such annual payment shall again be resumed:

Provided that if any authority, other than the Central Government is of opinion that the amount of rupees twenty lakhs or rupees two thousand five hundred per vehicle for the entire fleet of vehicles, whichever is less, is not adequate, it may, with the previous approval of the Central Government,continue the annual payment beyond rupees twenty lakhs or rupees two thousand five hundred per vehicle, as the case may be.

15.

-C. Investment of the fund

.From the amount at the credit of the fund the authority shall keep and maintain a cash deposit of not less than rupees fifty thousand in the bank. The rest of the amount at the credit of the fund shall be invested in Government securities.

15.

-D. Securities held as a deposit in the fund

(1)

All Government securities in which the fund is invested shall be transferred to the bank by the authority.

(2)

It shall be competent for the authority at any time to exchange the Government securities for cash or for other Government securities of equal or greater market value or both, and the bank shall carry out the instructions issued by the authority for such exchange after charging the usual commission to the authority. The securities so exchanged shall also be transferred to the bank.

15.

-E. Deposits procedure

(1)

As soon as the fund is established the bank shall send to the authority a statement specifying the assets held by it and shall also send a copy thereof to the Central Government in the Department of Transport or the State Government concerned, as the case may be.

(2)

The statement referred to in sub-rule (1) shall be sent in the same manner and to the same authorities whenever there is a change in the assets of the authority held by the bank.

15.

-F. Interest on deposit in the fund

.Interest realized on each deposit or the securities held in the fund shall be paid by the bank to the authority.

15.

-G. Withdrawal from the fund

(1)

No amount shall be withdrawn from the fund except for the purpose of meeting any liability arising out of the use of any motor vehicle of the authority which the authority or any person in the employment of the authority may incur to third parties including liability arising under the Workman's Compensation Act,1923.

(2)

The authority shall, subject to such conditions and restrictions as it may impose in this behalf, authorize one of its officers to draw moneys from the fund for the purpose mentioned in sub-rule (1).

(3)

A copy of the authorization referred to in sub-rule (2)duly authenticated by the competent officer of the authority shall be sent to the bank which shall permit withdrawals only by the officer named in such authorization subject to the conditions

and restrictions contained therein.

15.

-H. Settlement of claims procedure

.The authority shall comply with such directions as The Central Government or the State Government concerned, as the case may be, may from time to time issue, with respect to the procedure to be followed for settlement of claims which are to be met out of the fund.

Part II ? Co-operative Insurance

16.

Definitions

.In this Part of these rules,

(i)

society means a society of transport vehicle owners which has been permitted under The provisions of sub-section (1) of section 108 of the Act to transact the business of an insurer for the purposes of the Act;

(ii)

Controller of Insurance means the person for the time being performing the functions of the Controller of Insurance, under the provisions of the Insurance Act, 1938;

(iii)

approved securities means approved securities as defined in sub-section (3) of section 2 of the Insurance Act, 1938;

(iv)

holding authority means in relation to a society the authority in whose custody the fund established under clause (a) of sub-section (1) of section 108 of the

17.

Co-operative Insurance Fund

.The fund required to be established in terms of clause (a) of sub-section(1) of section 108 of the Act shall be held in the form of a deposit made either in cash or in approved securities or partly in cash and partly in approved securities and the amount of approved securities so held shall be estimated at the market value of the securities on the day of the deposit: Provided that where a deposit held under the Insurance Act, 1938, is transferred to the holding authority in pursuance of rule 24 of these rules, the date of the deposit shall, in the case of approved securities so transferred, be deemed to be the date of such transfer.

18.

Deposits Procedure

(1)

Deposits shall be sent by the society with a covering letter to the holding authority.

(2)

Securities shall be duly transferred to the holding authority by the society.

(3)

Upon receipt of a deposit under sub-rule (1) of this rule, the holding authority shall send

(a)

a certificate inForm D to the society;

(b)

a statement in Form E to such officer as may be specified by the Provincial Government:

Provided that, if the holding authority is not satisfied as to the validity to the title of to the securities, he may return them to the society with the request that they shall first be renewed or that such other measures as may be necessary shall be taken to clear the title.

(4)

The deposit made in cash shall be held by the holding authority to the credit of the society and shall except to the extent, if any, to which the cash has been invested in securities under sub-rule (6) of this rule be returnable to the society in cash in any case in which under The provisions of the Act or of these rules the fund is to be returned.

(5)

The societies may at any time replace any securities deposited by it under these rules with the holding authority either by cash or by other approved securities or partly by cash and partly by other approved securities provided that such

cash, or the value of such other approved securities estimated at the market rates prevailing at the time of replacement, or such cash together with such value, as the case may be, is not less than the value of the securities replaced estimated at the market rates prevailing when they were deposited.

(6)

The holding authority shall, if so requested by the society,

(a)

sell any securities deposited by it with the holding authority under these rules and hold the cash realized by such sales as deposit, or

(b)

invest in approved securities specified by the society the whole or any part of a deposit held by the holding authority in cash or the whole or any part of the cash received by him on the sale of, or on the maturing of securities deposited by the society, and hold the securities in which investment is so made as deposit and may charge the normal commission on such sale or on such investment.

(7)

Where sub-rule (6) of this rule applies,

(a)

if the cash realised by the sale of, or on the maturing of, the securities (excluding in the former case the interest accrued) falls short of the market value of the securities at the date on which they were deposited with the holding authority, the society shall make good the deficiency by a further deposit either in cash or in approved securities estimated at the market value of the securities on the day on which they are deposited, or partly in cash and partly in approved securities so estimated, within a period of two months from the date on which the securities matured or were sold; and unless it does so the society shall be deemed to have failed to comply with the condition imposed under clause (a) of sub-section (1) of section 108 of the Act; and

(b)

if the cash realized by the sale of, or on the maturing of, the securities (excluding in the former case the interest accrued) exceeds the market value of the securities at the date on which they were deposited with the holding authority, the Provincial Government may, if satisfied that the full amount required to be deposited under clause (a) of sub-section (1) of section 108 of the Act is in deposit direct the holding authority to return the excess.

19.

Interest on securities held as a deposit

(1)

No interest shall be paid on cash deposits.

(2)

Any interest accruing due and collected on securities deposited under clause (a) of sub-section (1) of section 108 of the Act and these rules shall be paid to the society, subject only to deduction of the normal commission chargeable for the realization of interest.

(3)

The holding authority shall remit interest or dividend on securities without delay to the society by a Government or bank draft after deduction of a commission of annas four on every sum of Rs . 100 or part thereof.

20.

Matured securities held as a deposit

(1)

When a security in deposit matures or when any yield on such a security ceases to accrue, the holding authority shall not be bound to inform the society but upon receipt of a requisition from the society made in writing the holding authority shall, within six weeks of such a receipt, collect the discharge value and hold the amount in cash to the credit of the society or invest it in securities specified by the society.

(2)

When the form of amount of a deposit is changed by reason of a subsequent deposit, or a substitution or a payment under sub-rule(5) of rule 18, or a sale or investment under sub-rule (6) of rule 18 of These rules, the holding authority shall, within two weeks from the entry of such change in the books of the holding authority, send a fresh certificate and a fresh statement of the nature and in the manner described in sub-rule (3) of rule 18 of these rules.

21.

Payments from deposits

(1)

Withdrawal and payments from deposits and purchases of securities shall not be made save on the order of the Provincial Government made in writing, and save on the receipt by the holding authority of a requisition in writing and in accordance with the provisions of the Act and of these rules from the society, a liquidator acting in accordance with law, or a Court of competent jurisdiction, as the case may be.

(2)

The holding authority shall not be bound in pursuance of sub-rule (1) to return securities actually deposited, but may substitute therefor new script of securities of the same description and amount.

(3)

The holding authority shall be entitled to charge, for the purchase or sale of securities and brokerage payable by the holding authority in respect of such purchase or sale.

22.

Inspection of deposits

.Any officer authorized in this behalf by the Provincial Government shall be entitled, free of any fee, to inspect or to require from the holding authority any information relating to any security deposited with the holding authority in terms of clause (a) of sub-section (1) section 108 of the Act and of these rules; and the holding authority shall, if so required, furnish such officer with a copy of any entry in any register or book maintained by the holding authority relating to any deposit made with him in pursuance of the Act and of these rules.

23.

Information to the Reserve Bank

.Where a society, to which permission is granted under sub-section (1) of section 108 of the Act to transact the business of an insurer for the purposes of the Act as if it were an authorized insurer is registered under the Insurance Act, 1938, at the time of the grant of such permission, the Provincial Government shall intimate the grant of such permission to the Reserve Bank of India, and shall also intimate to that bank all the conditions, imposed by the Provincial Government relating to the establishment of the fund referred to in clause (a) of sub-section (1) of section 108 of the Act in relation to such society.

24.

Transfer of deposit from Reserve Bank

(1)

A society as aforesaid shall apply in writing to the Reserve Bank of India for the transfer of the deposit made under section 7 or section 98 of the Insurance Act, 1938, held by the Reserve Bank to the holding authority and such application shall be duly authenticated and accompanied by the order in original of the Provincial Government granting the society permission under sub-section (1) of section 108 of the Act and containing the conditions, if any, imposed by the Provincial Government under clause (a) of sub-section (1) of section 108 of the Act, an attested copy of such application and its enclosures shall also be sent to the controller of Insurance.

(2)

If from the applications so made the Reserve Bank is satisfied that the society has been granted permission by the Provincial Government under sub-section (1) of section 108 of the Act, the Reserve Bank shall transfer the deposit held by it under section 7 or section 98 of the Insurance Act, 1938, on behalf of the society to the holding authority subject to such conditions, if any, as may have been imposed by the Provincial Government.

25.

Information to the Controller of Insurance

.A Provincial Government shall intimate to the Controller of Insurance every case of a permission granted by it to a society to transact the business of an insurer for the purposes of the Act, and every case where such permission has been withdrawn or cancelled, and in every case where such permission has been granted, the Provincial Government shall also furnish to the Superintendent of Insurance a copy of the documents referred to in clauses (a), (b) and (f) of sub-section (2) of section 3 and the particulars referred to in section 26 of the Insurance Act, 1938, in relation to such society so far as is applicable to such society:

Provided that in the case of societies which, at the time, of grant of the permission by the provincial Government has

been registered under the Insurance Act, 1938, it shall be sufficient compliance with the requirements of this rule if the provincial Government furnishes to the Controller of Insurance the particulars referred to in section 26 of the Insurance Act, 1938, in respect of every alteration taking place after the date on which permission is granted to the society by the Provincial Government.

26.

Failure of a society to comply with the provisions of the Act

.The Controller of Insurance shall intimate to the Provincial Government concerned every case in which, from a perusal of the returns furnished to him by a society, he is of the opinion that the society has failed to comply with the requirements of either sub-clause (i) or sub-clause (ii) of clause (f) of sub-section (1) of section 108 of the Act or both.

Part III ? Foreign Insurance

27.

Definitions

.In this part of these rules

(i)

visitor means a person bringing a motor vehicle into India and making only a temporary stay therein not extending to a continuous period of more than one year;

(ii)

foreign insurer means a person or firm carrying on the business of insurance incorporated or domiciled outside India and not registered under the Insurance Act, 1938;

(iii)

guarantor means an insurer who has guaranteed a foreign insurer in pursuance of the such rules, and guarantee, guaranteed and guaranteeing, have corresponding meanings;

(iv)

approved list means the list of foreign insurers and their guarantors maintained by the Central Government under these rules;

(v)

certificate of foreign insurance means a certificate issued by a foreign insurer in Form G in compliance with these rules.

28.

List of foreign insurers

(1)

The Central Government shall publish in the Official Gazette a list (hereinafter referred to as the approved list) of foreign insurers who have been guaranteed in accordance with these rules together with the name of the guarantor or guarantors in each case and shall also publish any addition to or removal from the approved list.

(2)

No foreign insurers name shall be added to the approved list until such foreign insurer has been guaranteed by at least one insurer and the name of the foreign insurer who ceases to have at least one guarantor shall be removed from the list.

29.

Guarantor of foreign insurer

(1)

An insurer who desires to guarantee a foreign insurer shall make application therefor to the Central Government in Form F set out in the Schedule to these rules.

(2)

The Central Government may, if it is satisfied that the application referred to in sub-rule (1) is in order and that it is expedient that the foreign insurer be placed in the approved list or, where the name of the foreign insurer is already included in the approved list, that the insurer should be added to the approved list as a guarantor of the foreign insurer, add the name of the foreign insurer to the approved list if it is not already included, and include the insurer as a guarantor of such foreign insurer.

(3)

A guarantor desiring to cease guaranteeing a foreign insurer shall give notice of not less than two months to the Central Government in Form I set out in the Schedule to these rules, and where such notice has been given, the guarantor shall

be deemed to have ceased to guarantee the foreign insurer from the date specified in the notice:

Provided that the insurer shall be deemed, in respect of all certificates of foreign insurance endorsed or renewed in accordance with the provisions of rule 30(2) of These rules before the date of such cessation, to continue as the guarantor of the foreign insurer who has issued the certificate as if the guarantor had not ceased to be his guarantor.

(4)

If at any time a guarantor ceases to be an insurer, The Central Government may, after giving such notice as may appear to it to be necessary, remove from the approved list the name of such guarantor where it appears:

Provided that the guarantor who ceases to be an insurer shall be deemed, in respect of all certificates of foreign insurance endorsed in pursuance of the provisions of rule 30(2) of these rules before the date of removal of the name of the guarantor from the approved list, to continue as the guarantor of the foreign insurer as if the guarantor had not ceased to be an insurer and as if his name has been removed from the list.

30.

Endorsement of certificate of foreign insurance

(1)

A visitor wishing to have a certificate of foreign insurance endorsed or re-endorsed shall produce such certificate in Form G set out in the Schedule to these rules before the Customs Collector at a port of entry or land customs post or to such other officer as the Central Government may, by notification in the Official Gazette appoint for purpose of endorsement in accordance with the provisions of these rules or for the purpose of the renewal of any endorsement already made on the certificate in accordance with these rules.

(2)

Such officer shall, if satisfied that the certificate of foreign insurance complies with the requirements of these rules, that the period of validity of such certificate in India has not expired, that the certificate has been issued by foreign insurer in the approved list and that the guarantor specified in the certificate is shown in the approved list as a guarantor of the foreign insurer, make an endorsement thereon in Form H set out in the Schedule to these rules.

(3)

The period of validity of an endorsement or of the renewal of an endorsement made as aforesaid shall not in any case extend beyond the date on which the certificate of foreign insurance ceases to be effective in India; provided that, when a visitor obtains a fresh certificate of foreign insurance during the period of his stay in India, the period of validity of an endorsement made upon it added to the period of validity of an endorsement or endorsements that may have been made upon the original certificate shall not exceed one year in all.

31.

Validity of certificate of foreign insurance

.A certificate of foreign insurance carrying an endorsement in accordance with the provisions of rule 30 shall have effect as if it were a certificate of insurance issued by the guarantor specified in it and shall be deemed to comply with the requirements of Chapter VIII of the Act; and the policy to which it relates shall also be deemed to have been issued by such guarantor and to comply with the requirements of Chapter VIII of the Act.

32.

Maintenance of record by the guarantor

.Every guarantor shall, in respect of certificates of foreign insurance issued under his guarantee by the foreign insurer whom he has guaranteed, and every person who has ceased to be a guarantor shall, in respect of the certificates of foreign insurance issued under his guarantee by the foreign insurers whom he had guaranteed at any time in the preceding five years, keep a record of such particulars relating to the policies in connection with which the certificates of foreign insurance were issued as are required to be kept by insurers under the provisions of rule 11 of these rules in respect of policies, and the necessary additions to these records required to make them up to date shall be made as soon as is reasonably possible in the circumstances.

THE SCHEDULE

FORM A

[MOTOR VEHICLES ACT, 1939]

[Now the Motor Vehicles Act, 1988 (

59 of 1988

).]

Certificate of Insurance

(See rule 4)

Certificate No.....Policy No.....

1. Description of the vehicles insured:

(a)

Registration mark and number.

(b)

Cubic capacity of the vehicles.

(c)

Make and year of manufacture.

(d)

Carrying capacity.

2. Name and address of insured.

3. Effective date of commencement of insurance for the purpose of the Act.

4. Date of expiry of insurance.

5. Persons or classes of persons entitled to drive.

6. Limitation as to use.

7. Insurance premium.

8. I/We hereby certify that the policy to which this certificate relates as well as this certificate of insurance are issued in accordance with the provisions of Chapter VII of the [Motor Vehicles Act, 1939]

[Now Chapter XI of the Motor Vehicles Act, 1988 (

59 of 1988

).]

.

(Authorised insurer)

(India)

FORM AA

(See rule 6-A)

Application for transfer of certificate of insurance and policy

I/We proposed to transfer the motor vehicle registered NO.....in the name of Shri.....(address) and I/We hereby apply in terms of section 103-A of the [[Motor Vehicles Act, 1939]

[Now Section 157 of the Motor Vehicles Act, 1988 (

59 of 1988

).]

, for the transfer of the certificate of insurance No.....and the policy relating thereto bearing No.....issued by you in respect of the said motor vehicle in favour of the said Shri.....with effect from.....

FORM B

[MOTOR VEHICLES ACT, 1939]

[Now the Motor Vehicles Act, 1988, (59 of 1988).]

Cover-note

(See rule 5)

1. Registration mark and number or description of the vehicles insured.....

2. Name and address of insured.....

.....

.....

3. Effective date of commencement of insurance for the purpose of the Act.

4. Date of expiry.....

5. Person or classes of persons entitled to drive.....

.....

.....

6. Limitation to use.....

.....

The period of validity of this cover-note will expire on

I/We hereby certify that this cover-note is issued in accordance with the provisions of Chapter VIII of the Motor Vehicles Act, 1939*.

(Authorised insurer)

The period of validity of this cover-note which expired onis extended upto.....

(Authorised insurer).

The period of validity of this cover-note which expired on.....further extended upto.....

(Authorised insurer).

The period of validity of this cover-note which expired on.....is further extended up to

(Authorised insurer)

FORM C

[MOTOR VEHICLES ACT, 1939]

[Now the Motor Vehicle Act, 1988 (

59 of 1988

).]

(See rule 12)

Certified that the motor vehicle of the following description:

(a)

Registration No.

(b)

Make

(c)

Class, i.e. motor cycle, motor car, motor bus, goods vehicle, or other class (to be described)

(d)

Colour of body

Is the property of-

(i)

the Government of.....

(ii)

the local authority/State Transport Undertaking, namely...the vehicles of which have been exempted under section 94(3) of the [Motor Vehicles Act, 1939]

[Now Section 146 of the Motor Vehicles Act, 1988 (

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, by the Government of.....by their order No. dated.....

This certificate is valid up to.....unless cancelled in the meanwhile.

Signed on behalf of

(Designation)

Dated.....

FORM D

(See rule 18)

No.....

19.

.....

Certified that thehas made the under-noted deposits under clause (As) of sub-section (1) of section 108 of the Motor Vehicles Act, 1939, and the Motor Vehicles (Third Party Insurance) Rules, 1946.

(Holding authority)

Approved securities

Cash

Loan

Face value

Market value

Remarks

1

2

3

4

5

6

Total

Grand total of columns 2 and 5 Rs.

FORM E

(See rule 18)

No.

19.

.....

Statement showing the particulars of deposits held on behalf of the under clause (a) of sub-section (1) of section 108 of the Motor Vehicles Act, 1939

Loan

Existing deposits (excluding deposits withdrawn)

New deposits received on

Total

Face value

Book value

Face value

Book value

Face value

Book value

Total.....

Cash.....

Grand Total

Certified that the above statement with the entries in the books maintained by

(the holding authority)

To

(Holding authority)

FORM F

(See rule 29)

Application for Consular

I/We hereby apply for consular of (name of foreign insurer)

Constituted/Incorporated/Domiciled at approved list maintained by the Central Government in pursuance of the Motor Vehicles (Third Party Insurance) Rules, and for the inclusion of my/our name as the guarantor of the said (name of foreign insurer for the purposes of Chapter VIII of the [Motor Vehicles Act, 1939]

[Now Chapter XI of the Motor Vehicles Act, 1988 (

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and the said rules. I/We hereby certify that I/we have entered into an arrangement for the purposes of the said Act and the said rules with the said foreign insurer and I/We hereby agree to act as guarantor in India in respect of the said foreign insurer for purposes of the said Act and the said rules.

(Signature of authorized insurer)

address

Dated the 20.....

FORM G

(See rule 30)

Certificate of foreign insurance

Certificate No.....Policy No.....(Optional)

1. Name and address of approved foreign insurer.
2. Name and address of guarantor.
3. Registration mark and number of the motor vehicle.
4. Name and address of visitor.
5. Date of commencement of the policy.
6. Date of expiry of the policy.
7. Person or classes of persons entitled to drive in India.
8. Any limitation as to use in India.
9. Particulars of any other vehicle (s) which the foreign visitor is entitled to drive in India and of any limitation in this connection.
10. I/We hereby certify that this certificate of foreign insurance has been issued in accordance with the provisions of Chapter VIII of the Motor Vehicles Act, 1939* and the Motor Vehicles (Third Party Insurance) Rules, 1946.

(Approved foreign insurer)

FORM H

(See rule 30)

Endorsement on Certificate of Foreign Insurance

Certified that I have today examined this certificate of foreign insurance and that I am satisfied that this certificate complies with the requirement of Chapter VIII of the Motor Vehicles Act, 1939(and of the Motor Vehicles (Third Party Insurance) Rules, 1946.

The period of validity of this endorsement will expire on....unless cancelled in the meanwhile.

Date.....

(Signature and designation of competent authority)

The period of validity of this endorsement is hereby renewed.

Up to.....

Up to.....

Up to.....

Up to.....

Unless cancelled in the meanwhile

(Signature and designation of competent authority)

FORM I

(See rule 29)

This is to give notice that I/We desire to cease acting as guarantor in India of(name of foreign insurer).....(address of foreign insurer) after.....or from the expiry of tow months from the date on which the notice is delivered to the Central Government, whichever is later, for the purposes of Chapter VIII of the [Motor Vehicles Act, 1939]

[Now Chapter XI of the Motor Vehicles Act, 1988 (

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and the Motor Vehicles (Third Party Insurance) Rules, 1946.

(Authorised insurer)

Dated theday of.....20.....

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Translation